

25SMCV02660 25SMCV02660

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-06-26

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Case Number: 25SMCV02660 Hearing Date: June 26, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ERIC HOFF, an individual;

Plaintiff,

v.

DONALD J. SCHEFFLER'S CONCRETE

CONSTRUCTION, a California Corporation; HEIDI CORPORATION, a California Corporation; and DOES 1 to 50, inclusive,

Defendants.

Case

No.: 25SMCV02660

Hearing Date: June 26, 2026

[TENTATIVE]

order RE:

PLAINTIFF'S MOTION FOR

TRIAL PREFERENCE

BACKGROUND

This is a personal injury case. Plaintiff

Eric Hoff ("Plaintiff") was working for CEMEX and delivering cement to a large residential project on May 14, 2024. A line of cement trucks had formed at the job site, causing a delay in delivery. As a result of this extended wait, the pump operator on site, an employee of defendants Donald J.

Scheffler's Concrete Construction ("Defendants"), was working the hopper and was routinely spraying a chemical substance into the hopper to prevent the concrete from sticking. During this task, Plaintiff was continuously exposed to harmful chemical substances. As a result of inhaling the harmful chemical substances sprayed by the pump operator, Plaintiff sustained severe injuries.

Plaintiff filed his Complaint on May 20, 2025, alleging four causes of action for negligence, negligence per se, premises liability, and strict liability – ultrahazardous activity. Plaintiff's action was consolidated with the action filed on October 28, 2025 by his wife, Lisa Hoff. Trial is currently set for April 24, 2028.

This hearing is on Plaintiff's motion for trial preference. Plaintiff seeks an order granting a preferential trial date to commence no later than 120 days from the date of the order granting this motion on the grounds that Plaintiff has a terminal condition. Defendants dispute sufficiency of Plaintiff's evidence.

LEGAL STANDARD

Code of Civil Procedure section 36, subdivision (d), provides, in pertinent part, that "the court may grant a motion for trial preference accompanied by clear and convincing medical documentation concluding that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months and satisfying the court that the interests of justice will be served by granting the preference".² (Code Civ. Proc. § 36, subd. (d).)

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Code Civ. Proc., § 36, subd. (f).)

DISCUSSION

Plaintiff argues that he suffers from end-stage pulmonary fibrosis and has been advised that he has a life expectancy of less than one year, thus Plaintiff will be substantially prejudiced if a preferential trial date is not granted. (Motion, p. 4.) Plaintiff argues that he is seeking a lung transplant in light of this prognosis. (Motion, p. 5.) Plaintiff notes in his motion that the consult does not mean he will definitively receive a lung, reiterating the argument that there is no certainty he will survive long enough to get to trial in 2028 or survive the procedure itself. (Ibid.)

In opposition, Defendants argue that evidence proffered by Plaintiff does not support the conclusion that Plaintiff will not survive the year to a reasonable degree of medical certainty. (Opposition, p. 2.) Defendants argue that Dr. McClintock-Greenberg’s report is conclusory and does not state when the evaluation was made. (Opposition, p. 3.) Moreover, Defendants argue that Plaintiff’s evidence of a lung transplant consultation references another note not included in the Exhibit. (Ibid.) It is undisputed by Defendants that end-stage pulmonary fibrosis is a terminal diagnosis. (Opposition, p. 4.)

Here, Plaintiff has established that Plaintiff suffers from end-stage pulmonary fibrosis, an illness or condition raising substantial medical doubt of survival of Plaintiff beyond six months. Plaintiff provides the report of Dr. McClintock-Greenberg, submitted under penalty of perjury, which states that absent a bilateral lung transplant, Plaintiff is not expected to survive beyond a year. (Miles Decl., Exh. A.) The report is dated November 21, 2025, which puts Plaintiff’s life expectancy at around 5 months from the date of hearing on the instant motion. (Miles Decl., Exh. A.) Moreover, Plaintiff provides evidence of a Ceders-Sinai Lung Transplant Consult and the corresponding after-care notes to show he is seeking the lung transplant, not

to assert the truth of related medical notes. (Motion, p. 5; Miles Decl., Exh. B.) Since Plaintiff has established substantial medical doubt in survival beyond six months, interests of justice will be served by granting the preference because Plaintiff will be able to adjudicate their claims.

Accordingly, pursuant to Code of Civil Procedure section 36, subdivision (f), the court will set this case for trial not more than 120 days from the date of this order.

CONCLUSION
AND ORDER

For the foregoing reasons, the Court GRANTS Plaintiff's motion for trial preference. Trial is set on October 19, 2026 at 8:30 a.m. The Final Status Conference will be on October 9, 2026 at 8:30. The Court advances the Order to Show Cause re Default of Heidl Corporation to October 9, 2026 at 8:30. The November 17, 2026 Status Conference is taken off calendar.

DATED: June 26, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court